

CV-26-006632 STRICKLAND, MARK A vs GOMEZ, CHARLOTTE R – Petitioner’s Petition for Court Order to Release and Return of the Cremated Remains of a Decedent - HEARING REQUIRED.

County: stanislaus

Division: Civil Law and Motion

Department: 22

Hearing date: 2012-04-02

Motion: The Court is inclined to DISMISS the petition. It does not appear that the Health and Safety Code authorizes such a petition or that the Court has the authority to grant the requested relief. On July 6, 2026, Petitioner filed the instant petition seeking an order directing Respondent Charlotte R. Gomez to the return of the cremated remains of Petitioner's spouse, Mrs. Shirely Strickland. On August 17, 2026, Respondent filed a General Denial but there is no opposition on file. Petitioner, as the surviving spouse, has the right to control the remains of the decedent. (Health & Saf. Code, § 7100(a)(2).) However, the Petition states that there was a prior small claims case in which Respondent stated that she does not know the location of the remains. More importantly, the Court does not appear to have the authority to award the requested relief. Health and Safety Code, section 7105 excludes a surviving spouse from the list of persons who may bring a petition. Also, it provides for an order determining who will have control among other persons having equal rights to control the disposition and directing that person to make interment of the remains. (Health & Saf. Code, § 7105.) The code does not provide authority for a Superior Court to order a person to return cremated remains that were allegedly wrongfully taken. Similarly, damages for intentional infliction of emotional distress are not available under the Health and Safety Code, section 7100 et seq. The following are the tentative rulings for cases calendared before Judge Clifford Tong in Department 23:

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